

23STCV17071 23STCV17071

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Case Number: 23STCV17071 Hearing Date: August 26, 2026 Dept: 510

No. 10 – Shayan Rostam v. Triller

Hold Co LLC, et al.

Plaintiff

Shayan Rostam's Request for Default Judgment and Motion for Attorney Fees

Plaintiff Shayan Rostam requests

court judgment by default against Defendant Triller Hold Co LLC for

\$1,971,757.63. Plaintiff also filed a motion for attorney fees to justify his

attorney fee request of \$603,284.85 made as part of the application for default

judgment.

As detailed in a prior

Court order, Plaintiff's request for default judgment meets all requirements

except its request for excessive attorney fees. Attorney fees for a default

judgment are generally limited to a specified schedule based on the amount of

damages. (Local Rules 3.207(a), 3.214(a).) A plaintiff may recover "a fee

greater than listed in the [default] schedule because of extraordinary services.”

(Local Rule 3.214(d).) The local rule does not provide a definition of what

constitutes “extraordinary services.” However, caselaw interpreting

“extraordinary services” warranting higher fees in probate actions reveals that

extraordinary services are those that are “remarkable, uncommon, or rare.” (In

re Buchman's Estate (1955) 138 Cal.App.2d 228, 235 [interpreting former

Prob. Code, § 902].)

Plaintiff argues that

counsel provided extraordinary services by litigating two motions and

participating in arbitration proceedings for one year. However, these are not

extraordinary services because they are not outside what would normally be

performed in an ordinary proceeding.

Even assuming these tasks

did constitute “extraordinary services” for purposes of Local Rule

3.214(d), Plaintiff does not provide the requisite itemized statement of the

tasks performed and fees incurred. (See Local Rule 3.214(d) [“An application

for a fee greater than listed in the foregoing schedule because of

extraordinary services must include an itemized statement of the services

rendered or to be rendered.”].) Instead, Plaintiff’s counsel admits that

“Because the representation was handled on a contingency basis, the firm did

not bill Plaintiff by the hour for this matter. The hours expended cannot now be reconstructed or estimated with sufficient reliability to present an accurate hourly total.” (Lavinski Decl., ¶ 3.) Counsel provides no evidence showing an estimation of the work performed in this case since its initiation in 2023. Without this, the Court could not evaluate the services rendered and their reasonableness. There is also inadequate evidence to determine the reasonableness of fees incurred under CCP § 1281.98(c).

Finally, as previously noted by the Court in an April 9, 2026 minute order, even if Plaintiff had established extraordinary services, the fees would be deducted from, not added to, the gross recovery, for the fees were based on a contingency fee arrangement. Despite this ruling, and the Court’s prior denials of fees based on the lack of evidence of extraordinary services, Plaintiff once again seeks fees on an additive basis. Plaintiff cannot have it both ways.

Disposition

Plaintiff Shayan Rostam’s request for default judgment is denied without prejudice.

Plaintiff Shayan Rostam’s motion for attorney fees is denied.